

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

2017-070947

TREVOR MABRY,

Plaintiff,

-against-

THE CITY OF NEW YORK and P.O. RAMON  
PORTILLO, TAX REGISTRY NO. 949503,

Defendants.

Index No.: 11160/17

Date of Purchase: 11-13-17

Plaintiff designates  
QUEENS COUNTY  
as the place of trial

**SUMMONS**

The basis of venue is  
Location of Incident

To the above-named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York  
November 10, 2017

Yours, etc.,

**GINSBERG & KATSORHIS, P.C.**

Attorneys for plaintiff

TREVOR MABRY

Office and P.O. Address, Telephone

77-53 Main Street

Flushing, New York 11367

(718) 591-6900

Defendants' addresses:

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

P.O. RAMON PORTILLO, TAX REGISTRY NO. 949503  
c/o 107<sup>th</sup> Police Precinct  
7101 Parsons Boulevard  
Flushing, New York 11365

6-29-17

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

TREVOR MABRY,

Plaintiff,

-----X Index No.: 11160/17

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK and P.O. RAMON  
PORTILLO, TAX REGISTRY NO. 949503,

Defendants.

-----X

The plaintiff TREVOR MABRY, complaining of the defendants by his attorneys, GINSBERG & KATSORHIS, P.C., respectfully shows to this Honorable Court and alleges as follows:

DK FIRST: That at all times hereinafter mentioned, plaintiff TREVOR MABRY, is a resident of the County of Queens, City and State of New York.

D SECOND: That this is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of a right, privilege and immunity secured to the plaintiff by the First and Fourteenth Amendments to the Constitution of the United States (including R.S. 1979, 42 U.S.C. Sec. 1981, 1983 and 1985) and arising under the laws and statutes of the State of New York.

DX 7 THIRD: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

DX 1 FOURTH: Upon information and belief, that at all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants and employees operated, maintained

and controlled the New York City Police Department, including all of the police officers and detectives thereof.

DK  
FIFTH: That at all times hereinafter mentioned and on and prior to the 29<sup>th</sup> day of June, 2017 and continuing at various times and places, defendant P.O. RAMON PORTILLO, TAX REGISTRY NO. 949503, was employed by defendant THE CITY OF NEW YORK, as a police officer.

D  
SIXTH: That this action arises under the United States Constitution, particularly under the provisions of the Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Act, title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

D  
SEVENTH: Each and all of the acts of defendants alleged herein were done by the defendants, their agents, servants and employees, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of Queens, and under the authority of their office as police officers and/or detectives for said City, State and County.

**AS AND FOR A FIRST CAUSE OF ACTION**

DX8  
EIGHTH: Plaintiff TREVOR MABRY repeats, reiterates and realleges each and every allegation contained in paragraphs marked FIRST through SEVENTH with the same force and effect as if more fully and at length set forth herein.

D  
NINTH: That commencing at or about 4:30 P.M. on the 29<sup>th</sup> day of June, 2017 and continuing thereafter at various locations and times, including but not limited to the 107<sup>th</sup> Police Precinct and the Detective Squad of the 107<sup>th</sup> Precinct, in the County of the

Queens, City and State of New York, the defendants, their agents, servants and employees unlawfully and falsely detained, arrested and imprisoned the plaintiff without any reasonable cause or lawful or proper reason; the defendants, their agents, servants and employees, acting under the scope of their employment and within the scope of their authority, wrongfully and falsely arrested and imprisoned the plaintiff without any just right and without grounds therefore; that the plaintiff was in fear of bodily harm and the defendants, their agents, servants and employees did touch the plaintiff without his consent; that said defendants did intend to confine plaintiff; plaintiff was conscious of the confinement and did not consent to the confinement, and the confinement as not otherwise privileged; that the defendants, their agents, servants and employees charged the plaintiff with violating New York Penal Law §120.00-1 (Assault in the Third Degree) and Penal Law §240.26 (Harassment in the Second Degree) for an incident that allegedly took place on the 19<sup>th</sup> day of May, 2017; that the defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, executed false complaints and affidavits and withheld vital information before a Judge of the Criminal Court of the City of New York, County of Queens; that plaintiff's false arrest and false imprisonment commenced on June 29, 2017 at approximately 4:30 P.M. and did continue up to and including the time of the plaintiff's arraignment on June 30, 2017 at approximately 11:00 A.M. of that day; that on October 16, 2017, following a review of video surveillance by the Queens County District Attorney's Office, and upon the application of the People of the State of New York, all criminal charges brought against the plaintiff were dismissed in the interests of justice, as the video surveillance exonerated the plaintiff herein.

D TENTH:

That the said arrest and imprisonment was caused by the defendants, their agents, servants and employees, without any warrant or other legal process and without

authority of the law and without reasonable cause or belief that the plaintiff was in fact guilty of such crimes.

D ELEVENTH: That the defendants, their agents, servants and employees, acting in the performance of their employment, and without any probable or reasonable cause, caused the arrest and false imprisonment of the plaintiff even though the defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, should have been aware that the plaintiff was innocent of such charges.

D TWELFTH: That by reason of the aforesaid unlawful arrest and imprisonment, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community, and the said plaintiff has been otherwise damaged.

D THIRTEENTH: That the plaintiff was wholly innocent of said criminal charges and was forced by the defendants to submit to the aforesaid arrest and imprisonment and indignities and humiliation thereto entirely against his will.

D FOURTEENTH: After unlawfully, maliciously, wantonly, intentionally, carelessly and recklessly detaining and imprisoning the plaintiff, and being negligent and acting not as individuals but under the color of statutes, ordinances, regulations, customs, usages of the City and State of New York, and under the authority of their office as detective/police officers for said City and State, plaintiff was physically detained by the defendants, their agents, servants and employees, with the intent and purpose of humiliating and embarrassing the plaintiff.

D FIFTEENTH: Plaintiff did not, either immediately before or at the time he was maliciously and intentionally detained and imprisoned and deprived of his constitutional rights

as set forth in the Constitution of the United States of America and the Constitution of the State of New York, commit any illegal act.

SIXTEENTH: All of the actions of the defendants, their agents, servants and employees were committed with the intention to detain, imprison and deprive the plaintiff of his rights and liberties as set forth in the Constitution of the United States of America and of the State of New York, all without plaintiff's consent.

SEVENTEENTH: As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, plaintiff was illegally detained and imprisoned and was deprived of his rights and liberties as guaranteed by the Constitution of the United States of America and the Constitution of the State of New York.

EIGHTEENTH: In unlawfully and illegally imprisoning and detaining the plaintiff, and while acting under color of statute, all without cause or justification, the defendants, their agents, servants and employees were violating plaintiff's rights and depriving him of his rights and liberties under the laws of the Constitution of the United States and of the State of New York.

NINETEENTH: In unlawfully and illegally imprisoning and detaining the plaintiff, and while acting under color of statute, all without cause or justification, the defendants, their agents, servants and employees directly violated the rules, regulations, statutes, ordinances and policies of the City and State of New York and those for New York City police officers and/or detectives.

TWENTIETH: As a direct and proximate result of the above described unlawful, malicious and intentional acts of the defendants, their agents, servants and employees, all committed under color of their authority as detective/police officers, and while acting in that

capacity, plaintiff suffered emotional damage which is in violation of his rights and privileges under the laws of the Constitution of the United States, in particular the amendments as set forth above.

D TWENTY-FIRST: That at all times hereinafter mentioned, the defendants were employed in their respective capacities by the City of New York and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

DK TWENTY-SECOND: That at all times hereinafter mentioned, the defendant was acting pursuant to orders and directives from the defendants and the City of New York.

D TWENTY-THIRD: That during all times hereinafter mentioned, the defendants, each of them separately and in concert, acted under color and pretense of law, to wit: under color of statutes, ordinances, regulations, customs and usages of the City of New York and defendants herein, separately and in concert, engaged in the illegal conduct herein mentioned to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

D TWENTY-FOURTH: The police officers/detectives of the City of New York and their individual members who are agents and employees of defendants, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States.

D TWENTY-FIFTH: This systematic pattern of conduct consists of a large number of individual acts of intimidation and humiliation visited on the plaintiff and other citizens by

members of the New York City Police Department, its agents, servants and employees of defendant, acting in concert with persons unknown to plaintiff and under color of law and said acts of intimidation and humiliation while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers/detectives may appropriately and legally engage in the course of protecting persons and property or ensuring civil order.

D TWENTY-SIXTH: Despite the fact that they knew or should have known of the fact that this pattern of conduct was being carried out by their agents, servants and employees, the defendants have not taken any step or effort to order a halt to this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

D TWENTY-SEVENTH: The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitutions of the United States and of the State of New York:

- a) the right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and
- b) the right of plaintiff to be informed of the nature and cause of the accusation against him and secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- c) the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth



Amendment to the Constitution of the United States.

P TWENTY-EIGHTH: That by reason of the aforesaid violations, false arrest, false imprisonment, and negligence caused by the defendants, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, that the defendants, their agents, servants and employees violated 42 U.S.C. §1983 in that persons who under color of any statute, ordinance, regulation, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the City and State of New York, was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn, ridicule, injured in his character and reputation; was prevented from attending his usual business and vocation; was injured in his reputation in the community, and the acts aforementioned were committed with the aim of injuring and damaging the plaintiff.

D TWENTY-NINTH: That by reason of the aforesaid, the plaintiff requests the following relief: (a) compensatory damages in the amount of damages which exceeds the jurisdictional limits of all lower courts which would otherwise have had jurisdiction; (b) punitive damages in the amount of damages which exceeds the jurisdictional limits of all lower courts, which would otherwise have had jurisdiction; and (c) an award of reasonable attorneys' fees, costs and disbursements.

**WHEREFORE**, plaintiff demands judgment against the defendants in a sum of damages exceeding the jurisdictional limits of all lower courts which would otherwise have had jurisdiction

on the FIRST CAUSE OF ACTION, together with punitive damages in the amount of FIVE MILLION (\$5,000,000.00), an award of reasonable attorneys' fees; plaintiff requests a trial by jury of all issues involved in this complaint, together with costs and disbursements of this action and with any other and further relief this Court deems just meet and proper.

Yours, etc.,

**GINSBERG & KATSORHIS, P.C.**

Attorneys for plaintiff

TREVOR MABRY

Office and P.O. Address, Telephone

77-53 Main Street

Flushing, New York 11367

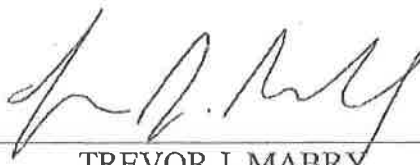
(718) 591-6900

INDIVIDUAL VERIFICATION

STATE OF NEW YORK    )  
                                  )  
COUNTY OF QUEENS    )    ss:

I, TREVOR J. MABRY, being duly sworn deposes and says:

That I am the plaintiff herein and have read the foregoing Complaint and know the contents thereof; that same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

  
TREVOR J. MABRY

Sworn to before me on this

10th day of NOV

2017

KERRY JOHN KATSORHIS  
Notary Public, State of New York  
No. 41-2042585  
Qualified in Queens County  
Commission Expires December 31, 2017  
